

I bind myself my heirs executors administrators and assigns jointly and severally to warrant and defend the rights and titles of the same to the said Stephen Hyde his heirs and assigns against myself my heirs and assigns and against all other persons whomsoever claiming the same or any part thereof through me or mine. In witness whereof I do hereunto set my hand and seal this the day of in the year of our Lord one thousand eight hundred and fifty three interlined before signed signed sealed and delivered in presence of us.

Dennis Hyde John Fants J.P.

his Absalom Carney

Personally appeared before me Dennis Hyde and after being sworn deposed and says that he saw the within mentioned Absalom Carney sign seal and deliver the within deed for the within purpose and that John Fants was a subscribing witness with himself this December 18th 1854 W. L. Keith C.C.

Dennis Hyde

Recorded the 19th day of Decr 1854 and examined by. W. L. Keith C.C. & R. M. C.

S. L. Fountain The State of South Carolina.

To  
W. L. Keith

To all whom these presents shall come

I Simpson S. Fountain of Pickens District in the State aforesaid send greeting. Whereas I the said Simpson S. Fountain in and by my Bond or obligation bearing even date with these presents stand firmly held and bound unto William S. Keith in the penal sum of six thousand dollars with a Condition thereunder written for the payment of the full and just sum of Three thousand dollars as in and by the said bond and Condition thereof reference being hereunto had will more fully and at large appear. Now know ye that the said Simpson S. Fountain for the better securing the payment of the said sum of Three thousand dollars with interest on the same from the 25th day of December 1854 (Inst) to be paid in six equal instalments with interest on each from 25th day of Decr 1854 (Inst) unto the said William S. Keith his heirs executors administrators or assigns together with lawful interest from the same from the 25th day of Decr 1854 have bargained and sold and by these presents bargain and sell and in plain and open market deliver unto the said William S. Keith his heirs and assigns forever the following Negro Slaves Viz Leah about 28 years of age and her child about one year old Frank about ten years of age Bill about eight years of age David five years of age Sue about three years of age the said Negroes all children of the above named woman named Leah To have and to hold the said six Negro Slaves and their future issue or increase if any unto the said William S. Keith his heirs executors administrators and assigns forever. Provided always nevertheless that if the said Simpson S. Fountain his heirs executors administrators or assigns shall and do well and truly pay or cause to be paid unto the said William S. Keith his certain attorney executors administrators or assigns the full and just sum of Three thousand to be paid annually six hundred dollars a year with interest on the whole from the 25th day of Decr (Inst) according to the true intent and meaning of the Bond aforesaid and of these presents together with lawful interest then this deed of bargain and sale and all and every clause article and thing therein contained shall cease determine and be utterly void and of none effect any thing herein before contained to the contrary thereof in any wise notwithstanding. And it is hereby declared by and between the parties and the said Simpson S. Fountain his heirs executors administrators and assigns do covenant promise and agree to and with the William S. Keith his executors administrators and assigns by these presents that if default shall happen to be made for in payment of the said sum of Three thousand dollars with interest as aforesaid as aforesaid according to the true intent and meaning of the said Bond that then and in such case it shall and may be lawful to and for the said William S. Keith his executors administrators attorneys or agents from time to time and at all times hereafter peaceably and quietly to enter into any or all the mesuages Bonds or tenements of the said Simpson S. Fountain and to take the six Negro Slaves above named & their increase into his custody and possession and the same to